

intent and the roadmap in April 2022 at a party meeting in Bhopal: "Article 370, Ram Mandir, Citizenship Act and triple talaq are done. Now, the Uniform Civil Code issue will be resolved in the coming years." Reiterating this at a function in Delhi in November, he said that if voted to power in 2024, the government would implement a uniform civil code.

## UNIFYING OR DIVISIVE?

Political rivals are convinced that the UCC is part of the BJP's divisive agenda. Sitaram Yechury of the CPI-M (Communist Party of India-Marxist) believes the Modi government's UCC is specifically targeted at Muslims and is a bid to polarise the nation on religious lines on the eve of the general election. While his party rejects the UCC outright, other parties had so far been ambivalent. The PM's statement, however, has forced them to react. Especially as the right-wing exponents of the UCC have gone into an overdrive to project it as a Secular vs. Muslim conflict. If these parties oppose the UCC, they run the risk of being seen as appeasing Muslims and alienating Hindu voters; if they endorse it, they may antagonise the Muslim vote. As Kapil Sibal, Rajya Sabha MP and eminent lawyer, puts it, "Not taking a position is not an option. The PM's statement puts the Opposition on the defensive. Those who oppose his call are likely to be called 'pro-Muslim' and also risk alienating a section of the Hindu population."

The prime minister, on his part, has dismissed all criticism. Instead, he accuses the rival parties of instigating the Muslims against the UCC for electoral gain. Irrespective of which side is playing politics over it, the UCC debate becomes a handy tool with which to break

# DIFFERENT FAITHS, DIFFERENT LAWS

**The laws that govern marriage, divorce, inheritance and adoption among various religious communities**

### MARRIAGE AND DIVORCE

| RELIGION | GOVERNING LAW |
|---|---|
| HINDU, BUDDHIST AND JAIN | Hindu Marriage Act (HMA), 1955 |
| MUSLIM | Muslim Personal (Shariat) Application Act, 1937; Dissolution of Muslim Marriages Act, 1939, and the Muslim Women (Protection of Rights on Marriage) Act, 2019 |
| CHRISTIAN | Christian Marriage Act, 1872; Indian Divorce Act, 1869 |
| SIKH | Anand Marriage (Amendment) Act, 2012; nothing on divorce |
| PARSI | Parsi Marriage and Divorce Act, 1936 |

### INHERITANCE AND ADOPTION

| RELIGION | GOVERNING LAW |
|---|---|
| HINDU, BUDDHIST AND JAIN | Hindu Succession Act, 1956, and the Hindu Minority and Guardianship Act, 1956 |
| MUSLIM | Muslim Personal Law (Shariat) Application Act, 1937 |
| CHRISTIAN | Indian Succession Act, 1925 |
| SIKH | Hindu Succession Act, 1956 |
| PARSI | Indian Succession Act, 1925 |